

**Jeff Johnson et al v. Stephen Favis, individually, as Trustee
of The McKenzie Madison Trust, and as purported Co-Trustee
of the Mariano Favis Revocable Living Trust et al**

26CV001697

DETERMINATION HEARING REGARDING COMPLEX CASE DESIGNATION

APPEARANCE REQUIRED

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Estate of Gavin Charles Scholle

26PR000038

AMENDED PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY
AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT
ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: There remains no POP in the Court's file. If one is filed prior
to the hearing, the Petition will be GRANTED, Richard S. Thomas will be appointed as probate
referee, and the matter will be set for a Status Hearing Re: Final Distribution on September 23,
2027, at 8:30 a.m. in Dept. A.

If no POP is filed, the Petition will be DENIED WITHOUT PREJUDICE.

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Estate of Jeanne Marie Agapoff

26PR000177

SPOUSAL PROPERTY PETITION

TENTATIVE RULING: The Petition is GRANTED.

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In the Matter of Louise Saylor 2019 Revocable Trust

26PR000191

VERIFIED PETITION AND COMPLAINT FOR: (1) ORDER FOR RETURN OF PROPERTY;
(2) UNDUE INFLUENCE; (3) CANCELLATION OF INSTRUMENT; (4) FINANCIAL
ELDER ABUSE BASED ON UNDUE INFLUENCE; (5) CONVERSION

TENTATIVE RULING: The matter is CONTINUED to October 8, 2026, at 8:30 a.m. in Dept.
B.

REVIEW HEARING COURT ORDER

TENTATIVE RULING: The Court is apprised that both Conservators (the parents of Conservatee Jaime Esguerra) have passed away and that Conservatee's sister has since filed a Petition to be appointed Conservator in Contra Costa County. The Court is informed that the Conservatorship was established on September 14, 2026, however, there remains no copy of Contra Costa County Court's September 14, 2026, order appointing the Conservatee's sister Conservator (the "9/14 Order"), in this Court's file. If a copy of the 9/14 Order is filed prior to the hearing, the Court will terminate the Conservatorship. If a copy of the 9/14 Order is not filed before the hearing, the matter will be CONTINUED to October 22, 2026, at 8:30 a.m. in Dept. A, pending approval of Conservatorship Petition in Contra Costa County. The Clerk is directed to send notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Blue Sky Utility, LLC, et al v. Barend Venter

24CV002242

CONFERENCE CASE MANAGEMENT

The Case Management Conference in this matter is continued to December 16, 2026, at 8:30 am in Department A.

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Barend Venter et al v. Ofer Yannay et al

24CV000715

CONFERENCE CASE MANAGEMENT

In light of the Court's concurrent ruling on the Demurrer to the Second Cause of Action in the Second Amended Complaint, the Case Management Conference is continued to December 16, 2026, at 8:30 am in Department A.

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Barend Venter et al v. Ofer Yannay et al

24CV000715

DEFENDANTS OFER YANNAY, ALLION RAVEH, NADAV TENNE, NOAM FISHER, SHAHAR GERSHON, AND TOMER DROVAL'S DEMURRER TO PLAINTIFF'S AMENDED SECOND CAUSE OF ACTION AND MEMORANDUM OF POINTS AND AUTHORITIES

TENTATIVE RULING: The demurrer is SUSTAINED. Plaintiffs are granted 10 calendar days' leave, from entry of the instant order, to attempt to further amend the operative complaint to state good claims for breach of fiduciary duty against the moving defendants.